

1.

CASE #	CASE NAME	HEARING NAME
CVME2514611	SIGEL VS SIGEL	MOTION FOR MANDATORY SETTLEMENT CONFERENCE & COURT CONNECTED MEDIATION

Tentative Ruling: Motion is Denied.

CRC Rule 3.1380(a) provides that “[o]n the court’s own motion or at the request of any party, the court may set one or more mandatory settlement conferences.” (CRC Rule 3.1380(a).) “Trial counsel, parties, and persons with full authority to settle the case must personally attend the conference, unless excused by the court for good cause. If any consent to settle is required for any reason, the party with that consensual authority must be personally present at the conference.” (CRC, Rule 3.1380(b).) This rule also provides for restrictions on appointments by stating “[a] court must not: ... [a]ppoint a person to conduct a mediation under this rule.” (CRC, Rule 3.1380(d).)

Here, Moving Party is asking the Court to compel a MSC, mediation, or other ADR process to resolve the issues in dispute in this case. Plaintiff correctly argues that while this Rule allows a party to request a MSC, it does not authorize the Court to compel one. In addition, this Rule is limited to setting a MSC, not mediation or other ADR process. Jerry Sigel has not cited authority for mediation or other ADR process. As to a MSC, Plaintiff persuasively argues that it is premature to set one in this case because discovery has not been completed. Notably, Plaintiff expressly does not oppose a MSC set at an appropriate later date when enough information has been obtained to pursue settlement.

2.

CASE #	CASE NAME	HEARING NAME
CVME2514862	CITY OF MENIFEE VS SULE	MOTION TO CONSOLIDATE ACTIONS

Tentative Ruling: Motion to Consolidate is granted for all purposes without prejudice to a motion to bifurcate at the time of trial. Newer case CVME2600208 to be consolidated into the older case CVME2514862.

3.

CASE #	CASE NAME	HEARING NAME
CVME2609283	SAMEC VS COUNTY OF RIVERSIDE	PETITION FOR RELIEF UNDER GOVERNMENT CODE 946.6

Tentative Ruling: Petition is Denied.

This is a petition, filed July 14, 2026, by Petitioner Joseph Samec for leave to present a late claim under Government Code section 946.6 against Respondent County of Riverside on the grounds that Samec did not discover the government cause of his injury until November 2025 when the Riverside County District Attorney's Office suppressed civil- court rulings, fraud judgments, impeachment evidence, exculpatory evidence, and concealed email communications between the Deputy District Attorney and the complaining witness.

The petition asserts that he filed his claim within six months of discovering the government's cause of his injuries. Further, the petition asserts that the County refused service of his claim filings, triggering equitable estoppel, and the DA's Office's concealments triggered delayed discovery and equitable estoppel. The specific claim Samec seeks to file states that the claim is for wrongful prosecution.

In opposition, County asserts that Samec is precluded from filing a claim with the County as the claim is untimely. The incident giving rise to the claim occurred in or about September 2022 or when DDA Boyd conducted the preliminary hearing for Petitioner. Petitioner argues that accrual only began in November 2025, when he allegedly "discovered" DDA Boyd's prosecutorial misconduct on the first day of his criminal defense trial, but that argument is defective because Petitioner failed to conduct even a minimal investigation into the alleged facts that formed the basis for the DA's charges against himself prior to the preliminary hearing and prior to the expiration of the six-month statute of limitations is not excusable.

County further asserts that relief to file a late claim may only be granted where a plaintiff can establish mistake, inadvertence or excusable neglect, which Samec cannot. Failure to discover an alleged issue against the County within the six-month claim period is not excusable neglect. In addition, County asserts that equitable estoppel is not applicable and DDA Boyd did not conceal material facts. Next, County asserts that Samec was not prevented from filing his claim, rather Samec attempted to serve the wrong entity, but was directed to serve the proper party, the County Clerk. Lastly, County asserts that the underlying claim is moot because the DA's office is immune from civil liability for damages arising from its prosecutorial function.

In reply, Samec asserts that County's opposition was untimely and he objects to its consideration.¹ In addition, Samec opposes County's special appearance. Even if considered, Samec asserts that it is factually incorrect, legally unsupported, and contradicted by County's own exhibits. Samec then reasserts his arguments related to discovery and equitable estoppel. In addition, Samec asserts that he has shown excusable neglect and that the County's immunity argument is misplaced and premature.

Requests for Judicial Notice

Petitioner requests judicial notice of the following:

One - Clerk of the Board' April 7, 2026, Claim Denial (attached as Exhibit 1.)

Two - Declaration of Brenda Samec regarding County's refusal to accept service (attached as Exhibit 2).

Three - SEC Judgment and Enforcement Records (attached as Exhibit 3).

Four - Judge Greene's ruling (attached as Exhibit 4.)

¹ "[A] trial court has broad discretion to accept or reject late-filed papers. (CRC rule 3.1300(d).) Here, the court exercises its discretion and considers the opposition.

Five - Bankruptcy fraud judgment finding Griffith committed fraud and deceit against Petitioner (attached as Exhibit 5).

Six - Ninth Circuit BAP ruling affirming the fraud judgment and finding Griffith “tried to trick the court” (attached as Exhibit 6.)

Seven - Trial Transcript excerpts “showing that DDA investigator coached Griffith (attached as Exhibit 7.)

Eight - Minute orders showing hung jury on all counts (attached at Exhibit 8.)

Nine - Dismissal order entered by the DDA after a full trial and hung jury (attached as Exhibit 9).

Ten - Government Claim and section 911.4 application submitted by Petitioner (attached as Exhibit 10).

Eleven - Email between DDA Boyd and Griffith September 2, 2022 (attached as Exhibit 11).

Twelve - Email between DDA Boyd and Griffith September 2, 2022 (attached as Exhibit 12).

Thirteen - Subpoenaed phone records showing Griffith owned and used the device (attached as Exhibit 13).

The Court Grants requests 1 and 10 and deny all other requests.

Gov. Code §911.4 provides that before a motion for leave to present a late claim is proper, first the injured party must file an application to the public entity, here City, to present a late claim, which must be presented to the public entity “within a reasonable time not to exceed one year after the accrual of the cause of action.” (Gov. Code §911.4(b).) Here, Samec has provided evidence that he applied with the County for leave to present a late claim, but it was denied by the County of May 6, 2026.

Gov. Code §946.6(c) provides that the court can only grant relief “if the court finds that the application to the board under Section 911.4 was made within a reasonable time not to exceed that specified in subdivision (b) of Section 911.4” which states it must be filed within one-year of accrual of the cause of action. (Gov. Code §946.6(c) and §911.4(b).) Here, it is clear that accrual of the alleged cause of action for wrongful prosecution occurred September 2022 when Samec was charged. Therefore, the court cannot grant relief pursuant to Gov. Code §946.6(c)(1) (which allows the court to grant relief where the failure to present the claim was through mistake, inadvertence, surprise, or excusable neglect unless the public entity establishes prejudice) based on the accrual date of September 2022. Bottom line, the time frame within which Samec had the ability to seek the ability to present a late claim, based on the accrual date, expired four years ago. (See *Munoz v. State of California* (1995) 33 Cal.App.4th 1767, 1782.)

However, *Munoz* discussed that plaintiff did not expressly raise the doctrine of equitable estoppel below, raising it for the first time on appeal, but noted that had plaintiff properly raised it below they did not satisfy the required elements for an equitable estoppel. (See *Munoz v. State of California* (1995) 33 Cal.App.4th 1767, 1785.) This discussion

implicitly acknowledges that equitable estoppel could be applied to alter the accrual date.

Generally speaking, four elements must be present in order to apply the doctrine of equitable estoppel: (1) the party to be estopped must be apprised of the facts; (2) he must intend that his conduct shall be acted upon, or must so act that the party asserting the estoppel had a right to believe it was so intended; (3) the other party must be ignorant of the true state of facts; and (4) he must rely upon the conduct to his injury.’ ’

Where, as here, a party seeks to invoke the doctrine of equitable estoppel against a governmental entity, an additional element applies. That is, the government may not be bound by an equitable estoppel in the manner as a private party unless, ‘in the considered view of a court of equity, the injustice which would result from a failure to uphold an estoppel is of sufficient dimension to justify any effect upon public interest or policy which would result from the raising of an estoppel.’ [Citation.]” (*Krolkowski v. San Diego City Employees’ Retirement System* (2018) 24 Cal.App.5th 537, 564-565.)

Here, even if Petitioner Samec could establish the first four elements (which is not apparent) the court finds that an injustice would not result from a failure to uphold an estoppel. Bottom line, the County is immune from suit for prosecutorial misconduct even should Petitioner Samec be allowed to file a late claim.

“A public employee is not liable for injury caused by his instituting or prosecuting any judicial or administrative proceeding within the scope of employment, even if they act maliciously and without probable cause.” (Gov. Code §821.6.) When this provision of the Government Claims Act immunizing public employees from claims of injury caused by wrongful prosecution applies, the immunity is absolute, meaning that the immunity is not conditioned on a showing that the defendant acted in a reasonable or procedurally proper manner, or any similar requirement. (*Leon v. County of Riverside* (2023) 14 Cal.5th 910, 922.)

4.

CASE #	CASE NAME	HEARING NAME
CVME2611151	COUNTY OF RIVERSIDE VS SOUVANNASANE	HEARING ON PRELIMINARY INJUNCTION

Tentative Ruling: Request for Judicial Notice is Granted. Unopposed Preliminary Injunction is Granted.